



Programme	Audit Course	Semester	IV
Course Code	20ME45T	Type of Course	Audit
Course Name	Indian Constitution	Contact Hours	2 hours/week 26 hours/semester
Teaching Scheme	L:T:P :: 2:0:0	Credits	2
CIE Marks	50	SEE Marks	Nil

COURSE OUTCOMES

CO-01	CO1	Understand Preamble, salient features and importance of Indian Constitution.
CO-02	CO2	Understand Fundamental rights, duties and Directive principles of state policy.
CO-03	CO3	Understand Parliamentary system of governance, Structure, Functions, Power of Central, state governments (Legislative, Executive) and Judiciary.
CO-04	CO4	Understand Panchayat Raj Institutions and Local self-governments, UPSC, KPSC, NHRC, Status of women, RTE etc.

GLOSSARY

1. Act: In simple words, an act refers to a law.

A law becomes an act once passed by the legislature in the house/assembly.

(Legislature – persons responsible for law making in a country).

For example – RTI Act of Indian Constitution 2005 has all the articles related to it covering all matters related to Right to Information.

2. Adjourn: To suspend the meeting to a future time, another place, or indefinitely.
3. Ambassador: An ambassador is an important person who lives in a foreign country and represents his or her own country's interests there.
4. Amendment: The amendment is the way of changing the constitution. Addition of an article, deletion of the article, or modification of article all require amendments.
5. Article: It is the main part of the constitution and has rules relating to a particular matter. It has a number of sections in it which lay down provisions under that article. Thus an article can be termed as rules that govern a particular subject of interest.
For example – Article 14 guarantees right to equality in Indian Constitution.
6. Assembly: A group of people gathered together in one place for a common purpose.
7. Bicameral: Having two branches, chambers, or houses, as a legislative body.
8. Bill: A Bill is a draft which becomes law after it is passed by both the Houses of Parliament and signed to by the President.
9. Code of conduct: A formal set of guidelines for behavior. May be drawn up by an official body, or by any other body.
10. Constitution: basic principles and laws of a nation, state, or social group that determine the powers and duties of the government and guarantee certain rights to the people in it
11. Constituent assembly: A body designed to represent the people, and to adopt a constitution.
12. Constituency: A group of voters in a specified area who elect a representative to a legislative body
13. Commission: It generally refers to a body given the responsibility to inquire into certain matters, or to make decisions or recommendations.
14. Democracy: It is a form of government in which the common people hold political power and can rule either directly or through elected representative.
15. Democratic: possession of supreme power by the people.
16. Draft: A preliminary version of a piece of writing.

17. Empowerment: The process of creating an awareness of rights and generally educating the public about governance, with the result that the people are encouraged to exercise their rights and powers—such as by voting or expressing their opinions.
18. Enact (enactment): Pass a law (including a constitution).
19. External Affairs: matters having to do with international relations and with the interests of the home country in foreign countries
20. Flexible constitution: A constitution that can be changed without great difficulty.
21. Franchise: The right to vote.
22. Government: The governing body of a state; often same as the ‘executive’, but also used to cover the legislature and judiciary; ‘three branches of government’.
23. Impeachment: A charge of misconduct made against the holder of a public office.
24. Implementation: The process of putting the rules of the constitution into practice.
25. Integrity: the state of being whole and undivided.
26. Jurisdiction: Power of a court to adjudicate cases and issue orders.
27. Laws: The rules and practices that govern the operation of the country.
28. Legislature: A body of people with the power to make and change laws.
29. Legislation: The process of making enacted law; the body of enacted laws
(Note: an individual law is not ‘a legislation’ but a ‘piece of legislation’ or ‘a statute’)
30. Monarch: A person who is the king of the empire.
31. Motion: Motions and resolutions are procedural devices to raise a discussion in the House on a matter of general public interest.
32. Nongovernmental organizations (NGOs): Organizations not comprising persons in government, and not set up by law.
33. Parliament: A legislature that formulates laws adopts the budget and forms the government in a parliamentary system of governance.
34. Part: The constitution is divided into a number of parts that deal with a specific topic. For example, Part III deals with Fundamental Rights and Part IV with Directive Principles in Indian Constitution.
35. Policy: A plan of action, statement of ideas, etc. proposed or adopted.
36. Portfolios: A portfolio is a minister's area of responsibility as a member of Cabinet.
37. Preamble: It refers to the introduction of the constitution.

It contains the summary or essence of the constitution. It can thus be called as the “IDENTITY CARD” of the constitution. Just as the identity card of an individual has his/her basic details, preamble too has the basic details of the constitution.

38. Princely state: A princely state, also called native state under regional ruler.
39. Province: A province is an administrative division within a country or state.
40. Quorum: The minimum number of members of a parliament needed to conduct meeting.
41. Remedies: Protects fundamental rights and ensure that people whose fundamental Rights have been violated can ask relief directly from the Supreme Court or Different High Courts of India.
42. Rigid constitution: A constitution that is hard to change (can't amend).
43. Schedules: Schedules are the auxiliary provision which could not be accommodated In one single article. They contain articles which are related to list of particular item.
44. Scientific temper : scientific method of questioning, observing physical reality, Testing,
45. Secularism: An ideology according to which religion or religious beliefs should Be excluded from certain human activities and decisions.
46. Socialist : Social equality in this context means the absence of discrimination On the grounds only of caste, colour, creed, religion, or language.
47. Sovereign: Independent authority of the State, not being subject to the control of Any other State or external power
48. Summon: Summoning means start of the session of the parliament.
49. Unicameral: Legislature composed of one chamber (Vidhan Sabha).
50. Bicameralism Legislature composed of two separate assemblies, chambers, or Houses (Vidhan Sabha & Vidhan Parishad)

WEEK 1

Q. What is Constitution?

Constitution is a set of basic laws or principles for a country that describe the rights and duties of its citizens and the way in which it is governed.

Q. What are the Objectives of the India Constitution?

The objectives of the constitution were defined in the objective aim moved by Pt. Jawaharlal Nehru and adopted by the constituent assembly on January 22, 1947.

1. To encourage world peace and the welfare of mankind.
2. Freedom of thought, expression, belief, faith & worship.
3. To secure India its rightful and honored place in the world.
4. Resolve (Decide) to proclaim (Declare) India as an Independent sovereign republic.
5. Adequate safeguards for minorities backward, tribal areas, depressed and other backward classes.
6. To establish a democratic union with an equal level of self-government for all the constituent parts.
7. To guarantee and secure to all people of India, Justice, Social, Economic and Political equality of status & opportunity before law.
8. All power and authority of the union government and governments of the constituent parts are derived from the people.
9. To maintain the integrity of the country of the Republic and its sovereign rights onland, sea, and air according to justice and law of civilized nations.

Q. Describe briefly about Indian constitution?

- Constitution of India is the World's lengthiest written constitution of any power Country in the world.
- Constitution of India contains 448 Articles in 25 Parts, 12 Schedules and 104 Amendments till date.
- The Temporary Chairman of the first meeting of the Constituent Assembly held on 9 December 1946 is Sachchidananda Sinha.
- The Cabinet Mission to India in 1946 headed by Lord Pethick Lawrence was aimed to discuss the transfer of power from the British government to the Indian leadership and granting it independence.

- The Constitution of India which was framed by the Constituent assembly which was set up in 1946.
- The Idea of Indian Constitution was given by Dr B R Ambedkar who was the Chairman of the Draft Commission set up by the constituent assembly in 1947 to prepare the draft of the constitution.
- The Drafting Commission constituted a panel of 6 Members
 - a) Krishnaswamy Ayyar
 - b) N. Alladi Gopalaswam Ayyangar
 - c) Mohd. Saadullah
 - d) N. Madhava Rao (replaced B.L. Mitter)
 - e) T.T. Krishnamachari (replaced Dr. D.P. Khaitan after his Death)
 - f) K.M. Munshi
- The Constitution of India is adopted by the Constituent assembly on 26th November, 1949 and the Constitution of India came into force on 26th January, 1950.
- “Samvidhan Divas” or constitution day is observed every year in India on 26 November to celebrate the adoption of constitution on 26 November 1949.
- Supreme Court acts as guardian of constitution by exercising Writs and Power of Judicial Review.
- The President of India is called the First Citizen of India as per the Constitution of India.
- Dr. Rajendra Prasad was the President of the Constituent Assembly.

Q. Explain the Formation of constituent assembly.

Formation of constitution

1. The idea of a Constituent Assembly for India was put forward for the first time by M. N. Roy.
2. In 1935, the Indian National Congress (INC), for the first time, officially demanded a Constituent assembly to frame the Constitution of India.
3. In 1938, Jawaharlal Nehru declared that the Constitution of free India must be framed, without outside interference, by a Constituent Assembly elected on the basis of “Adult franchise”.
4. The demand was finally accepted by the British Government which is known as the ‘August Offer’ of 1940.
5. In 1942, Sir Stafford Cripps, a member of the cabinet, came to India with a draft proposal of the British Government on the framing of an independent Constitution to be adopted after the World War II.

6. The Cripps Proposals were rejected by the Muslim League which wanted India to be divided into two independent states with two separate Constituent Assemblies.
7. In 1946 a Cabinet Mission was sent to India and an agreement between cabinet mission and major political parties were made and this led to the formation of constituent assembly in November 1946.

Q. Explain the Composition of constituent assembly.

Composition of the Constituent Assembly:

1. The total strength of the Constituent Assembly was to be 389, of these, 296 seats were to be allotted to British India and 93 seats to the Princely States (native state).
2. After partition of the country the strength of constituent assembly got reduced from 389 to 308.
3. Each province and princely state was to be allotted seats in proportion to their respective population.
4. Roughly, one seat was to be, allotted for every million population.
5. Seats allocated to each British province were to be decided among the 3 main communities—Hindu, Muslims, Sikhs in proportion to their population.
6. The representatives of each community were to be elected by members of that community By means of single vote.
7. The representatives of princely states (Indian states) were to be appointed by the heads of the princely states.

Describe Silent features of Indian constitution.

1. Single Citizenship.
2. Universal Adult Franchise.
3. Longest written constitution.
4. Parliamentary System of Government.
5. Unique blend of rigidity and flexibility.
6. Independent and Integrated Judicial System.
7. A Federation with a strong centralizing tendency.
8. India as a sovereign, socialist, secular, democratic and republic.
9. Fundamental Rights, Fundamental Duties and Directive Principles of State Policy.

1. Single Citizenship: India has a single citizenship provided by the union and recognized by all the states across India.
2. Universal Adult Franchise: Every Indian who is 18 years of age or above is eligible to vote in the elections, irrespective of caste, sex, race, religion or status.
3. Longest written constitution:
 - a. It contains separate provisions for states and centre and their inter-relationship.
 - b. Separate provisions for scheduled castes, scheduled tribes, women, children, and backward regions.
4. Parliamentary System of Government:

Parliament controls the functioning of the Council of Ministers; hence it is called Parliamentary system.

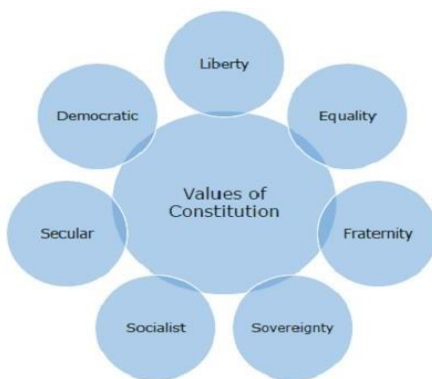
 - a. The President of India is the constitutional head
 - b. The Prime Minister is the head of the Council of Ministers who is collectively responsible to the lower house (Lok Sabha).
5. Unique blend of rigidity and flexibility:
 - a. A Constitution may be called rigid or flexible on the basis of its amending (altering) procedure.
 - b. Some parts can be amended by ordinary law making procedure while certain provisions can be amended only when a Bill for that purpose is passed in each house of Parliament.
6. Independent Judicial System: The judiciary system is kept free from the influence of the executive and the legislature.
7. Federation with a strong centralizing tendency: Federal means decentralization of power. Powers are distributed between the central & state government but central government retains the overall control.
8. India as a sovereign, socialist, secular, democratic and republic:
 - a. India is governed by its people through their representatives elected on the basis of universal adult franchise.
 - b. India as a sovereign means it manages its internal and external affairs freely without any external forces.
 - c. The term socialist means achievement of socialist goals through democratic and non-violent means.
 - d. Secular means it recognizes all religions equally.

e. Republic means head of the state (President) is elected one and not the monarch.

9. Fundamental Rights, Fundamental Duties and Directive Principles of State Policy:

- a. Fundamental Rights are enforceable in the court of law.
- b. The Fundamental Duties, added by the 42nd Amendment are moral awareness which should be followed by the Citizens.
- c. The DPSPs are the guidelines to be followed by the states regarding governance and are not enforceable in the court of law.

Explain Preamble of Indian constitution.



The preamble to the Constitution of India is a brief introductory statement that sets out the guiding purpose, principles and philosophy of the constitution.

It was borrowed from USA.

WE, THE PEOPLE OF INDIA, have solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens:

1. JUSTICE social, economic and political;
2. LIBERTY of thought, expression, belief, faith and worship;
3. EQUALITY of status and of opportunity; and
4. FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation.

Features of Preamble

1. It states that constitution derives its authority from the people of India.
2. Declares India as, sovereign, socialist, secular, democratic and a Republic Nation.
3. Justice, liberty, equality and fraternity are the objectives of the constitution.
4. 26 November 1949 – Date of Adoption.

WEEK 2

Introduction to fundamental Rights

Fundamental Rights are considered as basic human rights of all citizens, irrespective of their gender, caste, religion or creed. Etc. It was borrowed from USA

There are 6 fundamental rights in India.



1. Right to Equality (Article 14 – 18)
2. Right to Freedom (Article 19 – 22)
3. Right against Exploitation (Article 23- 24)
4. Right to Freedom of Religion (Article 25-28)
5. Cultural and Educational Rights (Article 29- 30)
6. Right to Constitutional Remedies (Article 32-45)

Q. Explain the Fundamental Rights of Every citizen.

1. Right to Equality



- Right to Equality ensures equal rights for all the citizens.
- The Right to Equality prohibits inequality on the basis of caste, religion, place of birth, race, or gender.

2. Right to Freedom

- These rights are freedom of speech, expression movement, throughout the area of our country.
- Freedom to practice any profession, freedom to



3. Right against Exploitation



- Right against Exploitation condemns human trafficking, beggars, child labor and forced labor making it an offense punishable by law.
- unless it is for the public purpose, like community services or NGO work

4. Right to Freedom of Religion

- There is equal respect given to all religions.
- There is freedom of profession, practice and propagation of religion.



WEEK 3

5. Cultural and Educational Rights:

- It protects the rights of cultural, religious & protecting them against intolerance.
- Educational rights ensure education for every one irrespective of their caste, gender, religion, etc.



6. Right to Constitutional Remedies

- Right to Constitutional Remedies ensures citizens to go to the supreme court of India to ask for protection against violation of their fundamental rights.



Fundamental Duties (Article 51A)

- These are defined as the moral obligations of all citizens to help promote a spirit of patriotism and to uphold the unity of India and concern the individuals and the nation.
- Included in Part IVA of the Constitution, like the Directive Principles, they are not enforceable by the law

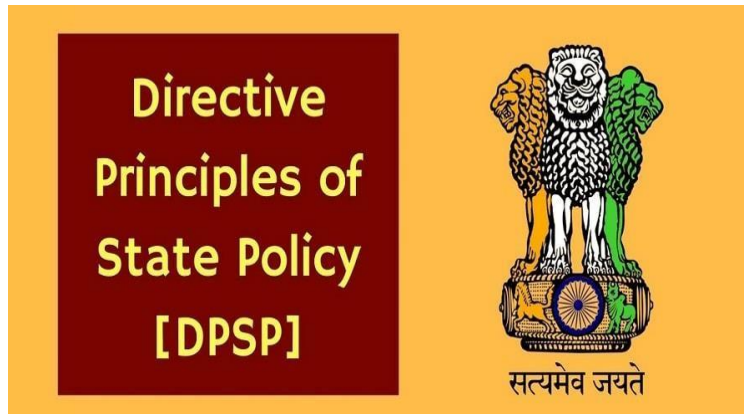
Explain the Fundamental Duties of Every citizen.

It shall be the duty of every citizen of India –

1. To safeguard public property and to abjure violence.
2. To value and preserve the rich heritage of our composite culture.
3. To uphold and protect the sovereignty, unity and integrity of India.
4. To defend the country and render national service when called upon to do so.
5. To develop the scientific temper, humanism and the spirit of inquiry and reform.
6. To abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem.
7. To cherish and follow the noble ideals which inspired our national struggle for freedom.
8. To promote harmony (together) and the spirit of common brotherhood amongst all the people of India.
9. To protect and improve the natural environment including forests, lakes, rivers and wild life, and to have compassion for living creatures.
10. To strive (aim) towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement.
11. To provide opportunities for education by the parent or the guardian, to his child, or a ward between the age of 6-14 years.

Directive Principles of State Policy:

- The Directive Principles of State Policy (DPSP) is a guideline in the Constitution of India to the State.
- They are listed in Part IV of the Constitution from Article 36 to Article 51.
Following are the significant Goals of DPSP –
 1. Welfare of the people; Social, economic, and political justice;
 2. Raising the standard of living; equitable distribution of resources;
 3. Promotion of international peace.
- **Dr.BR Ambedkar** described these principles as ‘novel features ‘of the Constitution
- The idea of Directive Principles of State Policy has been taken from the Irish Constitution.



Q. What are the features of Directive Principle of state policy?

Features:

The Directive Principles consist of the following guidelines for the States:

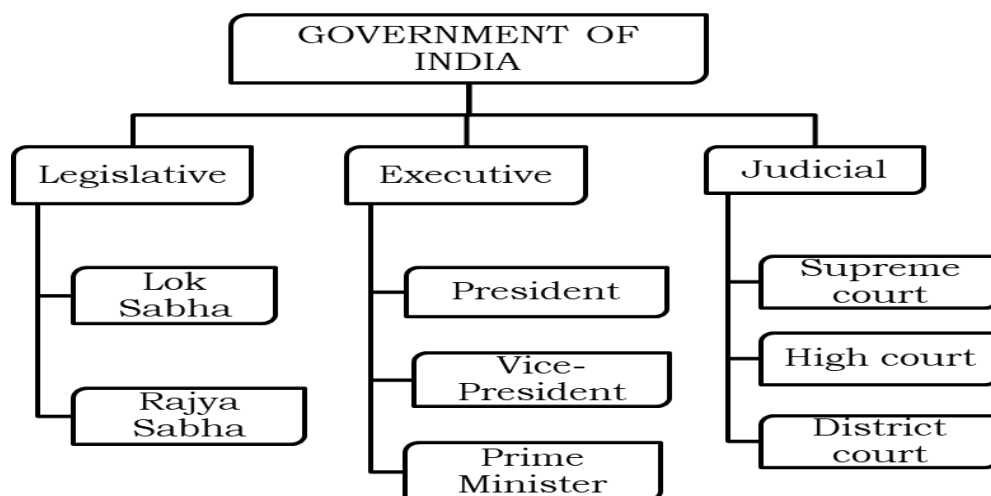
1. Promotion of cottage industries in rural areas.
2. Removal of inequality in status and opportunities.
3. Equal work opportunity for both men and women.
4. Ensure proper working conditions and a living wage.
5. Prevention of child abuse and exploitation of workers.
6. To secure adequate means of livelihood for the citizens.
7. The State should aim to promote the welfare of the people.
8. The State should aim towards removing economic inequality.
9. Promotion and maintenance of international peace and security.
10. Maintain social order through social, economic and political justice.
11. Prohibition of alcoholic drinks, recreational drugs, and cow slaughter.
12. Free and compulsory education for children below the age of 14 years.
13. Preservation of the environment by safeguarding the forests and the wild life.
14. Assistance to the needy includes the unemployed, sick, disabled and old people.
15. Organization of Village Panchayats which will work as an autonomous body working towards giving justice.
16. Economic and educational upliftment of the SC and ST and other weaker sections of the society.

WEEK 4

**Q. What is Parliament?**

Parliamentary Government has been defined as “Government by talk” or more precisely, “control of Government by talk”.

The word “Parle” is a French word and it means “Talk”. Parliament is often described as a mere “Talking shop”.

Q. What are the Functions of parliament?

Functions of parliament are as follows:

1. Legislative Function

- a. The function of the legislative is to form policies and laws that will govern the nation.
- b. To make sure that these functions are properly followed, Constitution of India provides for two houses, Lok Sabha and Rajya Sabha.
- c. Together these houses ensure that the legislative functions of the Government are executed properly by passing relevant laws and making citizen friendly policies.

2. Executive Function

- a. Once the laws have been properly made and sanctioned, the duty of implementation falls on the executive body.
- b. The state governments and other relevant bodies are responsible for this function. Legislative and Executive functions are interdependent functions of the Parliament.
- c. Execution of laws and policies are checked by the office of the Executive.
- d. At an administrative level, the civil servants have the responsibility of checking that all the policies introduced by the government are properly implemented and its benefits reach the people.

3. Judiciary

- a. Once the rules have been made and compensations for breaking them established, it becomes imperative that there is a body which monitors proper following to these rules.
- b. It also acts as a dispute resolver for the government.
- c. Thus, a court has the authority to punish members of Parliament, members of the executive and citizens of the country, if it finds them guilty of any misdeed.

Thus, we may say that while the Legislative makes the law, the executive implements the law, the Judiciary upholds the law.

Q. Explain the basic Structure of Parliament?

Structure of Indian Parliament consists of:

1. The Lok Sabha (House of the People).
 2. The Rajya Sabha (Council of States) and
 3. President.
- These two houses and the President together constitute the Parliament of India.
 - The object behind the creation of the Rajya Sabha is to provide for a second chamber so that legislation passed by one House can be reviewed and altered if needed by the other.

Lok Sabha

1. The House of People known as Lok Sabha is the lower house of Parliament consistsof 552 members.
2. In which 530 members are representing States, 20 representing Union Territories and 2 representing the Anglo – Indian Community.
3. Though it is the assembly that represents the people, the representatives are chosen by the people who qualify the age of 18 years or above.
4. President of India appoints two members of the Anglo-Indian Community.
5. The allocation of seats in the States is based on the proportion of their population.
6. A number of seats are reserved for the Scheduled Caste and Scheduled Tribes.
7. The Lok Sabha operates for 5 years unless it is dissolved earlier.
8. Recently, the 17th Lok Sabha was elected in May 2019 which is the latest one, having member strength of 545 people at present.

Rajya Sabha

1. The Council of States commonly known as Rajya Sabha is the upper house of Parliament comprises of 250 Members.
2. In which 238 members are representing States and Union Territories, while the rest of 12 members are appointed by the President of India.
3. The members of Rajya Sabha are chosen through the indirect method by the elected members of the Legislature of States and Union Territories.
4. The 12 members who are appointed by the President are the ones who gave their contribution in the specific fields.
5. The allocation of seats in the Rajya Sabha is based on the proportion of the population.
6. The Rajya Sabha is a permanent assembly which is not a subject of dissolution.
7. However, $\frac{1}{3}^{\text{rd}}$ of its members retires after every second year which is replaced by the new members.
8. The term or period of membership of a member is 6 years. The present strength of the members of Rajya Sabha is 245.

Q. Differentiate between Lok Sabha and Rajya Sabha.

COMPARISON	LOK SABHA	RAJYA SABHA
Meaning	Lok Sabha is the House of People, where the members are elected by the people.	Rajya Sabha is the Council of States, where the representatives are <u>indirectly</u> elected by the elected representative of MLA's of States and Union Territories.
Permanency	It's a temporary body which can be dissolved.	It is a permanent body.
Minimum age	25 years	30 years
<u>Maximum</u> members	552 Members	250 Members
Introduction of Money Bill	Only in Lok Sabha	Cannot pass money bill
Presiding officer	Speaker	Vice President of India

Q. Functions of Parliament

Some of the major functions of the parliament are

1. Legislative functions
2. Executive functions.
3. Financial functions.

Legislative Functions

- It makes the laws for Governance of the country.
- It makes laws on the following subjects in the state :
 - a) When Rajya Sabha passes a resolution to that effect.
 - a) When a proclamation of National Emergency is in operation.
 - b) When 2 or more states make joint request to the parliament.
 - c) When necessary to give effect to international agreements, treaties and conventions.
 - d) When president's rule is in the operation in the state.
- It approves all the ordinances issued by the president within six weeks after its reassembly.
- It takes the decisions of declaring the emergencies. It frames the foreign policies of the country.

Executive Function

- i. It conducts the parliamentary sessions.
- ii. It exercise the control over executive through question hour, zero hour.
- iii. It discusses the dissolution of the Lok Sabha.
- iv. It wakes all major functions.
- v. It makes all major appointments.
- vi. It resolves the inter-departmental disputes.
- vii. It appoints the inquiry commission, whenever it is necessary.
- viii. It is responsible for the adjustment of parliamentary sessions.
- ix. It may call the emergency parliamentary sessions.
- x. It supervises all the activities of the executive with the help of committees.
- xi. Lok Sabha can also express lack of confidence in the government in the following ways :
 - a) By rejecting money bill.
 - b) By passing a cut motion.
 - c) By passing an adjournment motion.
 - d) By not passing motion of thanks on the presidents inaugural address.
 - e) By defeating the government on a vital issue.

Financial Functions

- i. Budgetary control - to control before the appropriation of grants through the enactment of the budget.
- ii. Post budgetary control - to control after the appropriation of grants through the three financial committees.
- iii. It passes the money bill
- iv. It recommends the financial commission.
- v. To allot the charge on contingency fund.

Q. Explain the Powers of Loksabha & Rajya Sabha.**Powers of the Lok Sabha**

1. Amends the Constitution.
2. Approves the Proclamation of emergency.
3. Can introduce and pass money and non-money bills.
4. Makes Laws on matters included in Union List and Concurrent List.
5. Establishes committees and commissions and considers their reports.
6. Approves proposals for taxation, budgets and annual financial statements.
7. Elects the President and Vice President and removes Judges of Supreme Court and High Court.
8. Controls the executive by asking questions, supplementary questions, resolution and motions and through no confidence motion.

Powers of the Rajya Sabha

1. It elects the president of India.
2. It elects the vice-president of India.
3. It can impeach the president of India.
4. Approves constitutional amendments.
5. It can initiate a move to remove the vice-president of India.
6. It approves proclamations of emergency when the Lok Sabha is not in session.
7. Considers and approves non money bills and suggests amendments to money bills.
8. Exercises control over executive by asking questions, introducing motions and resolutions.

WEEK 5

Who makes laws?

In India, at the central level, laws are formulated by the Parliament and at the state level by Legislative Assemblies and Councils.

Q. Explain the Procedure for making law.

Procedure followed in parliament in making law are:

1. The concerned department drafts a Bill.
2. The draft bill is approved by the Cabinet.
3. Opinion is asked from the public (optional).
4. The opinions are taken into account and the final bill is introduced in the Parliament
5. The Bill is sent to Standing Committee (Standing committee is a committee consisting of Members of Parliament).
6. The Standing Committee seeks public and experts opinion.
7. The Report of the standing committee is presented to the Parliament/State Assembly
8. The Bill is presented for passing. The content of the Bill is read multiple times.
9. The Bill is either passed or rejected by the house.
10. If there is another house, it has to be passed by other house (money bills need not be passed by Rajya Sabha)
11. Once, both the houses pass the bill it is sent to the president/Governor for assent. Once the President/Governor assents it, the Bill becomes an Act.
12. The Act is published in the Gazette (in this stage, the Act is still not effective)
13. The concerned department notifies the Act coming into force/enforced.

Annual Financial Statement (Budget)

- According to the article 112 of the constitution of India, the president shall in respect of every financial year cause to be laid before the houses of parliament an annual financial minister submits commonly known as the **budget**
- The Finance Minister submits budget before the house of parliament with the permission of president
- The statement gives out estimated income and expenditure for the year under two heads
 - a) Sum charged upon the consolidated fund of India
 - b) The sum required to meet other expenditure out of consolidated fund of India

Discussion and Voting on Budget

- According to article 113 the expenditure which is charged on the consolidated fund of India shall not be submitted to the vote of parliament.
- The estimates which relate to this expenditure must be submitted to Lok Sabha in the form of demands for grants
- The Lok Sabha has the powers to assent or refuse to assent to any demand or to assent to any demand subjected to the reduction of the amount specified therein
- No demand for a grant to be made except on the recommendation of the president.

Procedure in Parliament with respect to estimates –

According to Article 113

1. So much of the estimates as relates to expenditure charged upon the Consolidated Fund of India shall not be submitted to the vote of Parliament, but nothing in this clause shall be construed as preventing the discussion in either House of Parliament of any of those estimates.
2. So much of the said estimates as relates to other expenditure shall be submitted in the form of demands for grants to the House of the People, and the House of the People shall have power to assent, or to refuse to assent, to any demand, or to assent to any demand subject to a reduction of the amount specified therein.
3. No demand for a grant shall be made except on the recommendation of the President.

Appropriation Bills - According to Article 114

1. As soon as may be after the grants under article 113 have been made by the House of the People, there shall be introduced a Bill to provide for the appropriation out of the Consolidated Fund of India of all moneys required to meet-
 - a) The grants so made by the House of the People; and
 - a) The expenditure charged on the Consolidated Fund of India but not exceeding in any case the amount shown in the statement previously laid before Parliament.
2. No amendment shall be proposed to any such Bill in either House of Parliament which will have the effect of varying the amount or altering the destination of any grant so made or of varying the amount of any expenditure charged on the Consolidated Fund of India, and the decision of the person presiding as to whether an amendment is inadmissible under this clause shall be final.

3. Subject to the provisions of articles 115 and 116, no money shall be withdrawn from the Consolidated Fund of India except under appropriation made by law passed in accordance with the provisions of this article.

Supplementary, additional or excess grants- According to Article 115

1. The President shall

- a) if the amount authorized by any law made in accordance with the provisions of article 114 to be expended for a particular service for the current financial year is found to be insufficient for the purposes of that year or when a need has arisen during the current financial year for supplementary or additional expenditure upon some new service not contemplated in the annual financial statement for that year, or
 - b) if any money has been spent on any service during a financial year in excess of the amount granted for that service and for that year, Cause to be laid before both the Houses of Parliament another statement showing the estimated amount of that expenditure or cause to be presented to the House of the People a demand for such excess, as the case may be.
2. The provisions of articles 112, 113 and 114 shall have effect in relation to any such statement and expenditure or demand and also to any law to be made authorising the appropriation of moneys out of the Consolidated Fund of India to meet such expenditure or the grant in respect of such demand as they have effect in relation to the annual financial statement and the expenditure mentioned therein or to a demand for a grant and the law to be made for the authorisation of appropriation of moneys out of the Consolidated Fund of India to meet such expenditure or grant.

Votes on account, votes of credit and exceptional grants- According to Article 116

1. Notwithstanding anything in the foregoing provisions of this Chapter, the House of the People shall have power-
 - a. to make any grant in advance in respect of the estimated expenditure for a part of any financial year pending the completion of the procedure prescribed in article 113 for the voting of such grant and the passing of the law in accordance with the provisions of article 114 in relation to that expenditure;
 - b. to make a grant for meeting an unexpected demand upon the resources of India when on account of the magnitude or the indefinite character of the service the demand cannot be stated with the details ordinarily given in an annual financial statement;

- c. To make an exceptional grant which forms no part of the current service of any financial year; and Parliament shall have power to authorise by law the withdrawal of moneys from the Consolidated Fund of India for the purposes for which the said grants are made.
2. The provisions of articles 113 and 114 shall have effect in relation to the making of any grant under clause (1) and to any law to be made under that clause as they have effect in relation to the making of a grant with regard to any expenditure mentioned in the annual financial statement and the law to be made for the authorisation of appropriation of moneys out of the Consolidated Fund of India to meet such expenditure.

Special provisions as to financial Bills - According to Article 117

1. A Bill or amendment making provision for any of the matters specified in sub-clauses (a) to (f) of clause (1) of article 110 shall not be introduced or moved except on the recommendation of the President and a Bill making such provision shall not be introduced in the Council of States: Provided that no recommendation shall be required under this clause for the moving of an amendment making provision for the reduction or abolition of any tax.
2. A Bill or amendment shall not be deemed to make provision for any of the matters aforesaid by reason only that it provides for the imposition of fines or other pecuniary penalties, or for the demand or payment of fees for licences or fees for services rendered, or by reason that it provides for the imposition, abolition, remission, alteration or regulation of any tax by any local authority or body for local purposes.
3. A Bill which, if enacted and brought into operation, would involve expenditure from the Consolidated Fund of India shall not be passed by either House of Parliament unless the President has recommended to that House the consideration of the Bill.

Rules of procedure - According to Article 118

1. Each House of Parliament may make rules for regulating, subject to the provisions of this Constitution, its procedure and the conduct of its business.
2. Until rules are made under clause (1), the rules of procedure and standing orders in force immediately before the commencement of this Constitution with respect to the Legislature of the Dominion of India shall have effect in relation to Parliament subject to such modifications and adaptations as may be made therein by the Chairman of the Council of States or the Speaker of the House of the People, as the case may be.

3. The President, after consultation with the Chairman of the Council of States and the Speaker of the House of the People, may make rules as to the procedure with respect to joint sittings of, and communications between, the two Houses.
4. At a joint sitting of the two Houses the Speaker of the House of the People, or in his absence such person as may be determined by rules of procedure made under clause (3), shall preside.

WEEK 6

The Composition of the Union Executive

The Union Executive comprises of

1. President
2. Vice president
3. Prime Minister
4. Council of Ministers

Q. What are the Qualification & Functions of the President?

1. The President

➤ **Qualifications of The President**

- Should be of sound mind.
- Should be a citizen of India
- Should have completed 35 years of age.
- Should be qualified to the election of Loksabha.
- Should not hold any office of profit in any government sectors.

➤ **Functions of the President**

The functions of the President can be studied under two heads

1. Legislative Functions.
2. Executive Functions.

1. Legislative Functions

- To summon & dissolve the lower house of Parliament.
- To address the first session of the Parliament (The "Presidential speech")
- Nomination of 2 Anglo- Indians to Lok Sabha and 12 members to Rajya Sabha.
- To access every bill to be passed by the Parliament and the power to withhold abill.
Also known as the 'Veto Power'.

2. Executive Functions

- Appoints Prime Minister and the Council of Ministers.
- All the administrative work is carried out in the name of the President.
- Appoints judges of supreme & high courts, election commissioners, governors, attorney general of India & ambassadors.
- Approval of members of Union Public Service Commission and National Commission for Women.

Q. What are the Powers of president?**1. Financial Powers**

- a. Consolidated fund is in the name of the President.
- b. Appoints members of the Financial Commission and Planning Commission.
- c. Any financial bill has to go through the President before being presented in the Parliament.

2. Judicial Powers

- a. Pardoning the sentence of guilty declared by the Supreme Court.
- b. President appoints the judges of the Supreme Court and High Court.

3. Military Powers

- a. Appoints the chief of Army, Navy & Air Force.
- b. He acts as the supreme commander of Armed Forces.
- c. The power to declare war or peace rests with the President.

4. Diplomatic Powers

- a. He can sign the international treaties & agreement.
- b. He sends or receives the ambassadors & other diplomatic representatives.

5. Emergency Powers

- a. **National Emergency:** When the security of the country is threatened due to war or external aggression, The President has the power to declare National Emergency in accordance with Article 352 of the Constitution.
- b. **State Emergency:** In case of a complete breakdown of constitutional machinery, a “President Rule” can be imposed by the State in accordance with Article 356 of the Constitution.
- c. **Financial Emergency:** If the financial stability and the prestige of a nation are threatened, President may impose financial emergency under Article 360 of the Constitution.

2. Vice President

Q. What are the Qualification & Functions of the Vice President?

➤ Qualifications of Vice President

- Should be of sound mind.
- Should be a citizen of India.
- Should have completed 35 years of age.
- Should be qualified to the election of Rajya Sabha.
- Should not hold any office of profit in any government sectors.

➤ Functions of Vice President

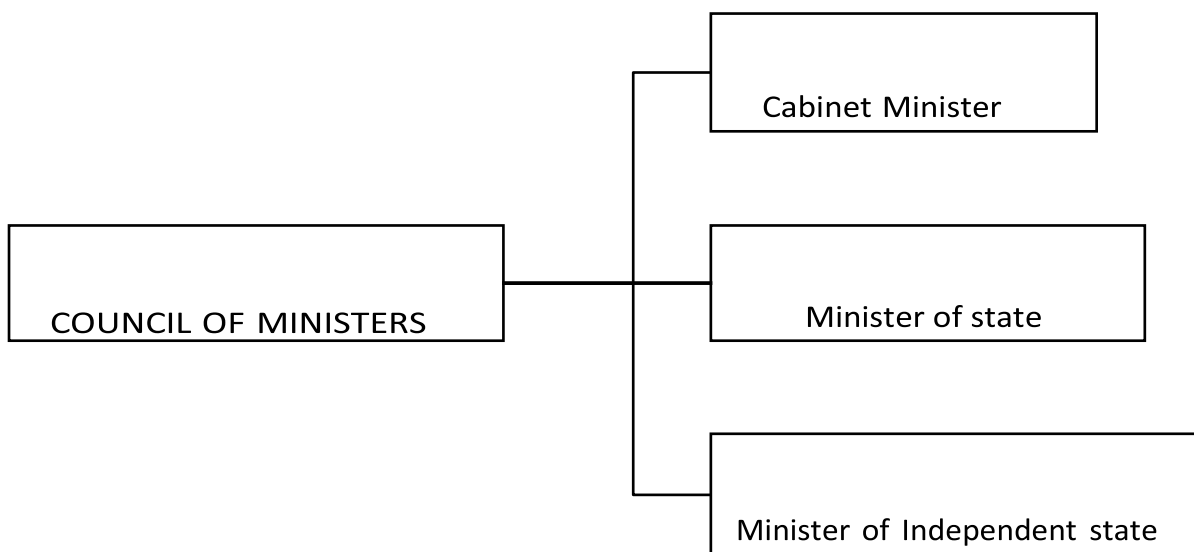
- He can adjourn the house.
- He certifies the bills passed by Rajya Sabha.
- He acts as President when a vacancy occurs in the office of President.
- The Vice President is *ex-officio* Chairman of RS and performs functions same as of Speaker of LS .
- He can act as President for maximum of 6 months period. During this period when he is acting as President, he can't discharge or perform duties of the office of Chairman of Rajya Sabha.

3. Prime Minister

- The Prime Minister is elected from among the members of the Lok Sabha.
- Under the Article 73 of the Constitution, He acts as the head of the Council of Ministers.
- He is the Head of the Government and is responsible for his actions.

Powers of prime minister are:

1. Chief Coordinator.
2. Change of Portfolios.
3. Removal of Ministers.
4. Allocation of Portfolios.
5. Declaring Emergency.
6. Chairman of the Cabinet.
7. Leader of the Parliament.
8. Director of Foreign Affairs.
9. Power to get the Parliament Dissolved.
10. Formation of the Council of Ministers.
11. Cover the meeting of the Council of Ministers
12. Chief Link between the President and the Cabinet.

4. Council of Ministers:

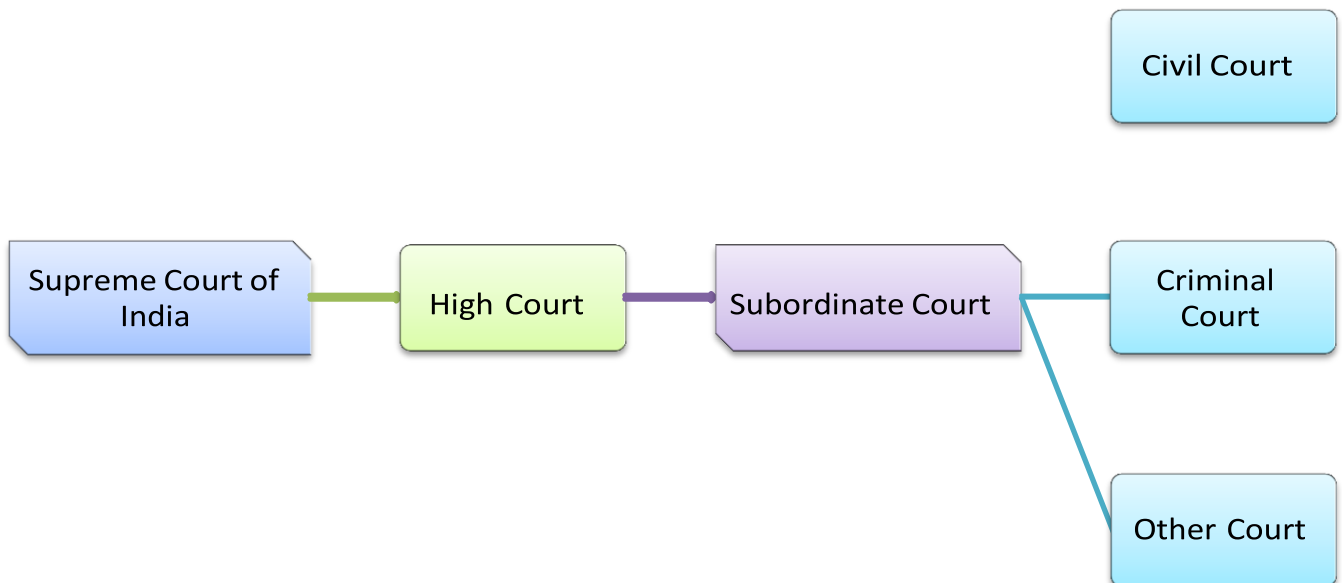
- Council of ministers is headed by the prime minister.
- It comprises of ministers who are members of cabinet, ministers of states, ministers of independent state & deputy ministers.
- Cabinet is an inner body within the council of Ministers. It acts in the name of the Council of Ministers and exercises all powers on its behalf.

Differences between council of ministers and cabinet ministers

Council of Ministers.	Cabinet Ministers
The Council of Ministers consists of all categories of Ministers in the Parliament	The Cabinet on the other hand consists of <u>Senior Ministers</u> only.
Council of Ministers can consist of even more than 70.	The Cabinet varies in number from 15 to 30.
The Council of Ministers rarely meets.	The Cabinet on the other hand meets as Frequently as possible.
It doesn't determine any policies or Programmes.	It determines the policies and Programmes of the Government.

WEEK 7

Structure of the judiciary



The Supreme Court:

- The Supreme Court of India came into existence on 28 January 1950.
- The Supreme Court of India is the highest judicial court under the Constitution of India, the highest constitutional court, with the power of judicial review.
- Chief Justice of the Supreme Court is appointed by the President of India.
- It consists of 34 members (33 judges+1chief justice of supreme court)



Q. What are the Qualification of Supreme Court judge

Qualification:

1. A citizen of India
2. Has been a High Court Judge for at least 5 years
3. Has been an Advocate of a High Court for at least 10 years.
4. No minimum age is prescribed for appointment as a Judge of the Supreme Court.

Functions of Supreme Court

1. **Guardian of the constitution:** It acts as the watch tower of the constitution. If the government passes any law against the constitution, the Supreme Court declares it unconstitutional.
2. **Original Jurisdiction:** Dispute between Government of India and one or more States, Between the Government of India and any State.
3. **Advisory Jurisdiction:** President may refer to Supreme Court for opinion, question of Law or Fact.
4. **Writ Jurisdiction:** Supreme Court as rights to issue writs for the enforcement of the fundamental rights of a citizen, following are the writs.
 - Habeas Corpus
 - Mandamus
 - Prohibition
 - Certiorari
 - Quo Warranto.
5. **Appellate Jurisdiction:** It hears appeals (Request) against some decisions of the High Courts, the cases concerned to civil, criminal and Constitutional matters.
6. **Special Leave to Appeal:** Appeals from any judgment, order, and sentence, determination in any matter made by any Court.
7. **Review:** The Supreme Court can review any judgment given by itself and also given the power to withdraw the case if it feels an important question of law is involved.
8. **Court of Record:** A court of record is a court where records are admitted with clear value and they are not to be questioned when they are produced before the court.
9. **Miscellaneous:** Transfer of Cases, Appeals from one High Court to another, Withdrawal of cases from High Court.

Q. What are the Qualifications & Powers of High Court?

There are **25 high courts** at the state and union territory level of India.

Qualification

1. He should be a citizen of India.
2. He must have held a judicial office in the country of India for at least 10 years.
3. He must have been an advocate of a High Court for at least 10 years.

Powers of High court

1. It can issue rules regulating the working of subordinate courts.
2. It has the power to superintend and control all subordinate courts.
3. It can ask for the details of the proceedings from subordinate courts.
4. It can transfer any case from one court to another and can even transfer the case to itself and decide the same.
5. It has the power to investigate or enquire into the record or other connected documents of any court subordinate to it.
6. The appointment, promotion and posting of the district judges is made by the Governor in consultation with the High Courts.
7. Each High Court has the power to appoint its administration staff and determine their salaries, allowances and other conditions of service.

Subordinate Courts or District courts

- It looks after the Civil and criminal matters of the district.
- District judge is appointed by the governor of a particular state.
- A law declared by the district court is applicable to all subordinate courts. Since District court is at a higher level.
- It established according to the population distribution of the district and state.
- District court consists of
 - a) Civil courts.
 - b) Criminal courts and
 - c) Revenue courts.
- These Courts hear civil cases, criminal cases and revenue cases, respectively.

Civil Court

- Civil cases relating to disputes between two or more persons regarding property, agreement or contract, divorce and landlord – tenant disputes.
- Civil Courts settle these disputes.
- They do not award any punishment as violation of law is not involved in civil cases.

Criminal Court

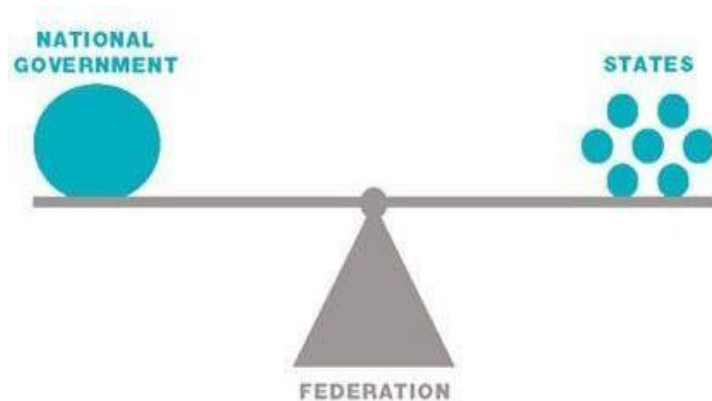
- Criminal cases relate to violation of laws.
- These cases involve theft, rape, pickpocketing, physical assault, murder, etc.
- These cases are filed in the lower court by the police, on behalf of the state, against the fault.
- In such cases the accused, if found guilty, is awarded punishment like fine, imprisonment or even death sentence.
- Highest criminal court of the district is the session's court.

Revenue Court

- Revenue cases relate to land revenue on agriculture land in the district.
- Deputy Commissioner at the district level & the Tashildar at the Taluk level act as judges.

WEEK 8

Federalism in India



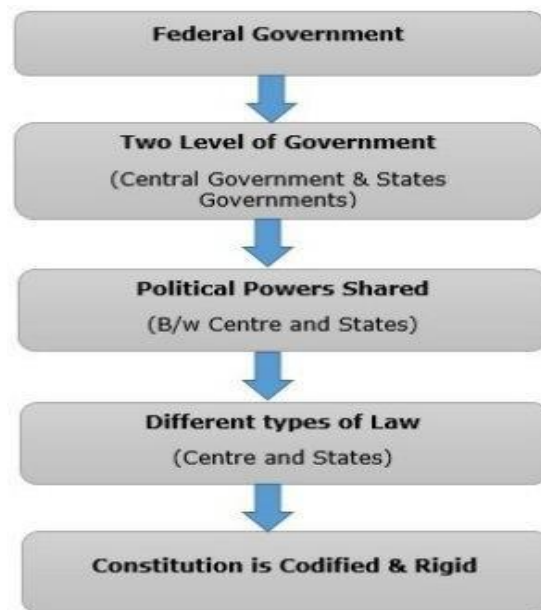
Federalism is a type of govt in which the power is divided between the national govt. and other governmental units generally, under federalism; there are two levels of government.

- Central government which looks after the major affairs of the country.
- State government which looks after the day to day functioning and activities of their particular state

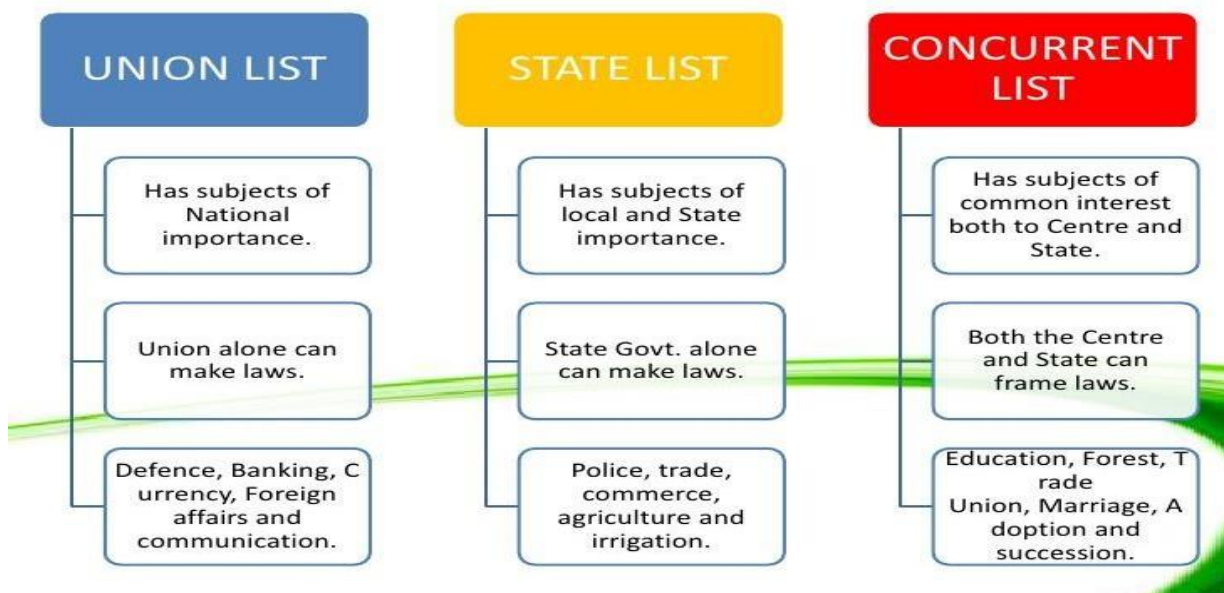
Q. Explain the Federalism in the Indian constitution.

1. Federalism is an institutional mechanism to accommodate two sets of governments.
2. Each level of the governments has distinct powers and responsibilities and has a separate system of government.
3. The details of this federalism or dual system of government are generally found in a written constitution.
4. Written Constitution is considered to be supreme and also the source of the power of both sets of government.
5. Certain subjects, which are the concern of a nation as a whole, for example, defense or currency, are the responsibility of the union or central government.
6. On the other hand, regional or local matters are the responsibility of the regional or state government.
7. In case of a conflict between the center and the state on any issue, the judiciary has the powers to resolve the disputes.
8. Though the Indian Constitution does not use the word 'federalism' anywhere; however, the structure of Indian government is divided into two sets of governments i.e.
 - a. For the entire nation known as the '**Union Government**' (or central government) and
 - b. For each unit or state known as the '**State Government**'.

The following diagram illustrates the basic structure of “Federal System”



- Likewise, the Constitution describes Union List (subjects dealt by only Central Government);
- State List (subjects dealt normally by States only); and
- Concurrent List (both Union and State have the power to legislate these subjects)



There are three lists which provide for distribution of legislative powers under 7th Schedule of the constitution:-

Union List: This includes subjects that carry national importance, in which central government can make laws, they are—

- Defense.
- Atomic Energy.
- Foreign Affairs.
- War and Peace.
- Banking.
- Railways.
- Post and Telegraph.
- Airways.
- Ports.
- Foreign Trade
- Currency & Coinage.

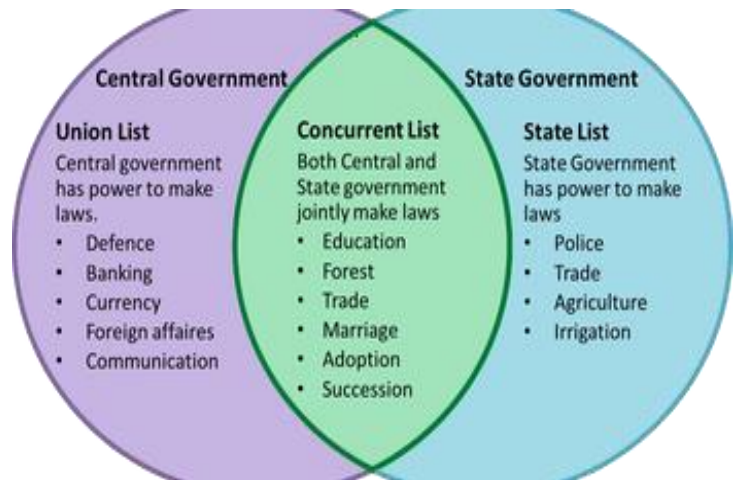
State List: This includes subjects that carry state importance, in which state government can make laws, they are—

Subjects of State Lists are —

- Agriculture.
- Police.
- Prison.
- Local Government.
- Public Health.
- Land.
- Liquor.
- Trade and Commerce.
- Livestock and Animal Husbandry.
- State Public Services.

Concurrent List: These are areas of common interest where both central & state government can make laws.

- Forests.
- Education.
- Adulteration.
- Trade Unions.
- Adoption and Succession.
- Transfer of Property other than Agricultural land.



Structure of State Legislature has two divisions

1. Vidhan Sabha or Legislative Assembly &
2. Vidhan Parishad or Legislative Council.

1. Vidhan Sabha or Legislative Assembly:

It is the popular house consisting of members who are directly elected by the people from different constituencies in the state

Qualifications:

1. He must be a citizen of India.
 2. He must be a person of above 25 years of age.
 3. He must be any other qualifications as may be prescribed by the parliament.
-
- a. Elected by the people of that state.
 - b. Fixed number of seats in every state.
 - c. It is the lower house of the state legislature.
 - d. Different number of seats for different states.
 - e. Elected members are called Members of Legislative Assembly (MLA).
 - f. Not more than 500 and not less than 60 members (an exception is the Legislative Assembly of Sikkim. It has 32 members)

Powers of Legislative Assembly

1. **Legislative Powers**: The State Legislature has got the power of making laws on the subjects of the State List and the Concurrent List. In this connection the real law- making powers are in the hands of the Legislative Assembly.
 2. **Financial Powers**: The Legislative Assembly controls the finances of the State. A Money Bill originates only in it. After having been passed by it, the money bill goes to the Legislative Council which has to act within fourteen days.
 3. **Control over the Executive**: The Legislative Assembly controls the State Council of Ministers. The Chief Minister is the leader of the majority party in the Legislative Assembly.
 4. **Amendment Powers**: The State Legislative Assembly enjoys a role with regard to the amendment of the Indian Constitution. Some parts of the Constitution can be amended by the Union Parliament only when half of the State legislatures ratify the amendment.
 5. **Electoral Functions**: The State Legislative Assembly elects its own Speaker and Deputy Speaker. It can also remove either of them through a vote of no- confidence
-
2. **Vidhan Parishad or Legislative Council**: It is the upper house of the state legislature and it is not present in all states only we can find in Karnataka, UP, Bihar, Maharashtra, J&K

Qualifications:

1. He must be a citizen of India.
 2. He must have completed 30 years of age.
 3. He must be registered as votes in one of the constituencies of the State.
-
- a. No MLC can be member of Cabinet of Ministers.
 - b. Elected by Governor, MLAs, standing graduates etc.
 - c. Elected members are called Member of Legislative Council (MLC)
 - d. Not more than one-third of total number of members or 40 members in legislative assembly of the state.

Composition:

1. 1/3rd of the total number of members elected by electorates consisting of members of municipalities & district boards.
2. 1/12th shall be elected by electorates consisting of graduates from graduates constituencies.
3. 1/12th shall be elected by electorates consisting of teachers from teachers constituencies not lower in standards than secondary schools.
4. 1/3rd shall be elected by members of the legislative assembly from among persons who are not its members.
5. 1/6th shall be appointed by the governor from persons having knowledge of practical experience in respect of matters such as literature science, art, co-operative movement & social service.

Functions:

1. Approves bills other than money bill.
2. It can withhold an ordinary bill passed by the legislative assembly for a maximum of 14 days.

Q. Differentiate between Legislative assembly & Legislative council.

COMPARISON	LEGISLATIVE ASSEMBLY (VIDHAN SABHA)	LEGISLATIVE COUNCIL (VIDHAN PARISHAD)
Meaning	Legislative Assembly is the lower house of the State legislature, whose members represents the people of the State, as <u>they are directly elected by the people.</u>	Legislative Council is the upper house of Indian States, which follows a bicameral legislature, whose members are <u>partly elected and partly appointed.</u>
Body	Temporary body	Permanent body
Election	Direct election	Indirect election
Members	Maximum members are 500, while minimum members are 60.	1/3 rd of the total members of Vidhan Sabha, but it should not be less than 40.
Minimum age	25 years	30 years
Presiding Officer	Speaker	Chairman

WEEK 9

Q. What are the functions of state legislature?

Functions of State Legislature:

1. It controls the financial matters.
2. It can take part in president's election.
3. To control work of all the ministry of state.
4. It can elect the speaker and deputy speaker.
5. It can make the laws on all matters of the state.
6. It can remove the council of ministers by passing no confidence motion.
7. It can approve the amendment bills passed by the union govt, concerned to the state.

Structure of the state government consists



1. Governor.
2. Chief Minister &
3. Council of Ministers.

Q. State the positions and powers of the Governor?

The Governor - Article 153 provides governor for each state.

Appointment

1. A citizen of India.
2. Completed the age of 35 years.
3. Should not hold any office of profit.
4. The governor is appointed by the president of India.
5. Not a Member of Parliament or State Legislature.

Term

→ He will be appointed for a period of 5 years but can be removed any time by the president and can also be transferred.

Powers and functions of Governor

1. Looks after the smooth running of the govt.
2. He addresses the members of legislative assembly.
3. Summons and discontinues the legislative assembly.
4. Dissolves the Legislative assembly on the advice of CM.
5. Appoints all other ministers according to the advice of CM.
6. Gives the oath of office to the CM and to all other ministers.
7. Appoints the judges of the high court in consult with president.
8. Exercises all executive powers to all executive actions of the state.
9. Appoints leader of majority party as the Chief Minister in the Legislative assembly.
10. Can pardon, suspend, shorten the sentence of any person convicted any offense against any law.
11. He appoints advocate general of the state, the chairman and members of public service commission and supervises the work.
12. Dismisses the ministry when they refuse to quit even after losing their majority.

The Chief Minister - CM is the head of council of ministers, cabinet & Legislative assembly

Appointment

→ Chief Minister is appointed by the governor after elected as the leader of Legislative assembly of major party.

Powers and Functions

1. Appoints ministers of the state.
2. Can recommend removal of ministers.
3. Approves major appointments in the state.
4. Approves all financial bills, resolutions etc.
5. The Chief Minister is the head of the council of ministers.
6. Maintains order and discipline in the legislative assembly.
7. He is the communicator between council of ministers & governor.
8. Presides over the meetings of the council of ministers & makes major decisions.
9. Allots the portfolio to all ministers and he can appoint them as cabinet ministers or deputy CM.

The Council of Minister:

- The chief minister select group of people who could assist him to run the government efficiently.
- These groups of selected members are called ministers.
- These ministers together form the council of ministers.
- The council of ministers are appointed by the governor on the advice of the CM. There is a speaker and a Deputy Speaker for the state legislative assembly.

Speaker

- Speaker is the Presiding Officer for State Legislative Assembly.
- The Speaker is elected by the assembly itself from amongst its members.
- Usually, the Speaker remains in office during the life of the State Legislative Assembly.

Functions of Speaker:

1. He adjourns the assembly or suspends the meeting in absence of a quorum.
2. He can allow a 'secret' sitting of the House at the request of the Leader of the House.
3. He decides whether a bill is a money bill or not and his decision on this question is final.
4. He does not vote in the first instance, but he can exercise a 'casting vote' in the case of a tie.
5. He appoints the chairman of all the committees of the assembly and supervises their functioning.
6. He decides the questions of disqualification of a member of the assembly, arising on the ground of defection under the provisions of the Tenth Schedule.
7. He himself is the chairman of the Business Advisory Committee, the Rules Committee and the General-Purpose Committee.

Deputy Speaker of Assembly

- Deputy Speaker is also elected by the assembly itself from amongst its members.
- He is elected after the election of the Speaker has taken place.
- Deputy Speaker remains in office usually during the life of the assembly.

Functions of Deputy Speaker

1. He has all the powers of the Speaker.
2. The Speaker nominates from amongst the members a panel of chairman.
3. He has the same powers as the speaker when presiding.
4. He holds office until a new panel of chairman is appointed.
5. Any one of them can preside over the assembly in the absence of the Speaker or the Deputy Speaker.

WEEK 10

Local self-government: Local bodies are institutions of the local self-governance, which look after the administration of an area or small community such as villages, towns, or cities.

Types of local self-governing Institution

1. Rural self-governing Institution.
2. Urban self-governing Institution.

1. Rural self-governing Institution (Panchayat Raj): It is a three-tier structure, which consists of:

- a. Village Panchayat at village level.
- b. Taluk Panchayat at Taluk level.
- c. Zilla Panchayat at District level.

a. **Village Panchayat:** Village Panchayat is formed for every 5000-7000 people in a village

Formation

- Directly elected by the people for a term is for 5 years.
- 1 Member for every 400 people.
- Seats reserved for women & for SC & ST.
- Head of village Panchayat is chairman or president elected among members.
- Vice president to assist chairman.
- Session held for every 2 months once.

Staff: The state government appoints an officer as the secretary and he has the executive powers.

Financial Resource: Funds from Zilla Panchayat, Taluk Panchayat state government & collection of taxes.

Functions:

1. Libraries.
2. Family welfare.
3. Fisheries work.
4. Agriculture development.
5. Women and child development.
6. Social forestry and farm forestry.
7. Rural housing, Markets and fairs.
8. Maintenance of community assets.
9. Khadi, village and cottage industries.
10. Drinking water and sanitary facilities.
11. Fuel and fodder (food fed for animals).
12. Provide sufficient number of street lights.
13. Animal husbandry, dairying and poultry.
14. Education, including primary and secondary schools.
15. Rural electrification, including distribution of electricity.
16. Small-scale industries, including food processing industries.
17. Minor irrigation, water management and watershed development.
18. Health and sanitation including hospitals & primary health centers.
19. Roads, culverts, bridges, ferries, waterways and other means of communication.
20. Land improvement, implementation of land reforms, land consolidation and soil conservation.
21. Social welfare, including welfare of the handicapped and mentally retarded.

b. Taluk Panchayath: Taluk Panchayat is formed for every 20,000 to 25,000 people in a village.

Composition:

- Directly elected by the people for a term is for 5 years.
- 1 Member for every 10000 people.
- Members of Lok Sabha and MLA's whose constituencies fall in a particular Taluk are also appointed as members of Taluk Panchayat.
- Members of Rajya Sabha and the MLC's who have enrolled themselves as voters in the Taluk are also appointed as members of Taluk Panchayat.
- 1/5 of the presidents of that Village Panchayat are also appointed as members of Taluk Panchayat for 1 year.
- President and vice president are elected from the elected members.

Staff: Assistant Commissioner of State services are appointed as the executive officer by state govt Municipalities.

Financial resources: Financial resources are given by Zilla Panchayat & loans from state govt, income from taxes and fee collection.

Functions: Same as Village Panchayat.

c. Zilla Panchayat: Established at district level in every state.

Composition:

- For every 40000 population, one member is elected through election
- Term – 5 years
- Members of Lok Sabha and MLA's whose constituencies fall in particular district are also appointed as members of Zilla Panchayat.
- Members of Rajya Sabha and the MLC's who have enrolled themselves as voters in the Zilla are also appointed as members of Zilla Panchayat
- 1/5 of the presidents of that Taluk are also appointed as members of Zilla Panchayat for 1 year
- President and vice president are elected from the elected members.

Staff: The state govt appoints DC as the chief executive

Financial Resources: Funds from state govt, loans from state govt, income from taxes and fee collection.

Functions: Does the same functions as Village and Taluk Panchayat.

2. Urban self-governing Institution (or Nagarpalikas)

- It looks after the affairs of urban areas
- Provides Municipal Corporation for larger urban areas, municipal council for small urban areas.

a. Municipal Corporation or Mahanagara Palike.

b. Municipal Council or Municipality.

Municipal Corporation or Mahanagara Palike.

- Corporations are formed in cities having population more than 3 lakhs & is established under laws passed by the state legislature.

Composition:

1. It consists of representatives of the people who are elected by people of different wards of the municipality corporation.
2. Total number of corporators should be between 30-100 depending on the population of the city.
3. The state govt nominates 5 members to Municipal Corporation who are residents and have experience.
4. The Members of Lok Sabha and legislative assembly whose constituencies fall that city are also ex-officio corporators.
5. Members of Rajya Sabha and Legislative Council who have enrolled themselves as voters are also ex-officio corporators.
6. Mayor and deputy mayor are elected by corporators in first meeting.

Term: They are elected for a period of 5 years, but the appointed member can be removed whenever needed.

Staff: The IAS officer is appointed as commissioner and is the official head.

Functions of Municipal Corporation

1. To plan activities.
2. Building and repair of roads and bridges.
3. Safety and security services, fire services etc.
4. Regulation of land use and construction of building.
5. Promotion of cultural, aesthetic and educational aspects.
6. Development of gardens, parks, play and cremation grounds etc.
7. Economic and social development planning and implementing.
8. Water supply management for domestic, commercial purposes.
9. Taxes, penalties & fees collection & utilization for city development.
10. Safeguard the interests of SC, ST and other backward class people.
11. Sanitation, sewage, waste, health, conservancy & pollution management.

Municipal Council or Municipality

- Constitution provides the municipality for a city having population between 50,000 – 3 lakhs.

Composition:

1. The municipality consists of councilors who are directly elected by the people from different wards.
2. State govt nominates 5 members to Municipal Corporation who are residents and have knowledge on administration.
3. The Members of Lok Sabha and legislative assembly whose constituencies fall that city are also ex-officio Members.
4. Members of Rajya Sabha and Legislative Council who have enrolled themselves as voters are also ex-officio Members.
5. President and vice president are elected by the members.

Term: They are elected for a period of 5 years, but the appointed member can be removed whenever needed.

Functions: Same as Municipal Corporation.

Bruhath Mahanagara Palike:

- A mayor and deputy mayor are elected every year, though not by voting - only a candidate from the Scheduled Caste and Tribes, Other Backwards Caste or an Other Backward Class female from the elected councilors can fill this position.
- The Commissioner as Executive Head.

Functions

1. Zoning and building regulations
2. Trade.
3. Hygiene.
4. Health.
5. Licensing.
6. Education.
7. Maintenance of drains.
8. Bridges and pavements and
9. Tree planting among others.
10. Cleaning and construction of roads.
11. Clearing of sewage and garbage, waste disposal.

12. Quality of life which include water bodies, parks and greenery.

Constitutional bodies:

1. Election commission of India
2. Union Public Service Commission(UPSC)
3. Karnataka Public Service Commission (KPSC)

1. Election commission of India

- Article 324 describes about election commission of India.
- It is an independent body without the influence and interference of political parties and executive..
- Term 6 years or 65 years.
- Chief election commissioner shall be chairman of the election commission.



Functions

1. Allotment of seats.
2. Ensuring free & fair election.
3. Preparation of the electoral rolls.
4. It can cancel or postpone polling.
5. Allotment of symbols to the parties.
6. Granting or recognition to political parties.
7. It sends central observers to all constituencies.
8. Determination of boundaries of each constituency.

2. Public Service Commission or (Union Public Service Commission)

- In our constitution article 315 provides that there should be public services commission for the union and for each state.
- It is an independent body and not influenced by political parties.

Composition: The UPSC consists of a chairman and other members appointed by the president of India.

Functions

1. Direct recruitment by selection through interviews.



2. Appointment of officers on promotion / deputation.
3. Disciplinary cases relating to different Civil Services.
4. Conduct examinations for appointment to the services of the Union.
5. To assist 2 or more states in regard to schemes of joint recruitment.
6. Framing and amendment of Recruitment Rules for various services and posts under the Government.
7. Advising the Government on any matter referred to the Commission by the President of India.
8. To send report annually to the president of India about the work carried out by UPSC or to the governor by state public service commission.

Karnataka Public Service Commission (KPSC)

According to the article 320(1) of the Indian constitution has provided a KPSC, which conducts the examinations for recruitment of candidates to the various services of the state.

Composition: It consists of chairman and nine members, secretary (an IAS officer) and controller of examination.



Functions of the KPSC:

1. It conducts the selection procedure.
2. It conducts the interview for the candidates for final selection.
3. It recruits the candidates to the various civil services across the state.
4. It conducts the personality test and written competitive examination.
5. To get the requirement of human resource from different departments.
6. It circulates the notifications for recruitment of candidates for various civil services across the state.

WEEK 11

Amendments of the Constitution

Amending the constitution of India is the process of making changes in the nation's fundamental law or supreme law, it means changes in the some provisions in the Indian constitution according to the current needs of the country according to the procedure prescribed in the constitution.

- Constitution of India is living document as it provides for its amendment in order to adjust itself to the changing conditions and needs.
- Amend ability provides flexibility and adaptability to constitutional framework to align itself with contemporary developments, thus makes it more relevant document of the time.
- Article 368 in Part XX of the constitution deals with the powers of Parliament to amend the constitution.
- The above provision states that, parliament in its constituent power amend, by way of addition variation or repeal any provision of the constitution in accordance with the procedure laid down for the purpose.
- However, in Keshavananda Bharati judgement, it was ruled that Parliament cannot amend those parts which are part of the 'Basic Structure of the constitution.

Amending Procedure

- Amendment can be initiated only by the introduction of a bill for the purpose in either house of the Parliament.
- The bill can be introduced either by a minister or by a private member and does not require the permission of the President.
- The bill must be passed in each house by a special majority, that is, a majority of the total membership of the house and a majority of two-thirds of the members of the house present and voting.
- Each house must pass the bill separately. If there is any disagreement, there is no provision for joint sitting of the houses.
- If the bill seeks to amend the provisions of the constitution, it must be ratified by the legislatures of half of the states by a simple majority.

- After passage of the bill by both the houses, it is presented to the President for this assent.
- The president must give his assent to the bill. He can neither withhold his assent to the bill nor return the bill for reconsideration of the Parliament.
- After the President's assent, the bill becomes an act. As of October 2021, there have been 105 amendments of the Constitution of India since it was first enacted in 1950. There are three types of amendments to the Constitution of India of which second and third type of amendments are governed by Article 368.

Q. Define Human Rights.

It is defined as the moral entitlements (Right) that place obligations (Responsibility) of other people to treat one with dignity and respect.

Following are the characteristics of human rights:

1. These are integral part of the constitution
2. They are universal.
3. They are dynamic
4. Has a limit to state power.
5. Human rights are essential and necessary.
6. They are in connection with human dignity
7. Maintain proper balance between individual liberty and social need



Q. State various Constitutional Provisions under 'human rights'?

Constitutional provisions based on principles of liberty, equality, fraternity and justice. Constitution gives great respect for human dignity, commitment to equality and non- discrimination and concern for weaker section in society.

1. Right to life.
2. Right to liberty.
3. Right to privacy.
4. Right to debate.
5. Right to speech.
6. Right to property.
7. Right to non-discrimination.
8. No sexual harassment.
9. Freedom from torture.

10. Reproductive rights

Right to Life

According to constitution of India, articles 6 of part III deals with the specific rights of individual and obligation of the state's parties. According to article 6, every human being has the inherent right to life. This right shall be protected by law. No one shall be arbitrarily deprived of his life.

Any one sentenced to death shall have the right to seek pardon or commutation of the sentence. Amnesty, pardon or commutation of the sentence of death may be granted in all cases

Right to Life and Liberty

Everyone has the right to life and liberty and security of person. Everyone is entitled to all the rights and freedom set forth in this declaration, without distinction of any kind, such as race, colour, Sex, language, religion, political or other opinion national or social origin, property, birth or other status

Everyone has the freedom of thought and religion everyone has the right to freedom of opinion and expression everyone has the right to freedom of peaceful assembly and association

List the features of 'Human rights of Women'

Human rights of women are as follows:

1. Right to work.
2. Right to marry.
3. Right to education.
4. Right to living wages.
5. Right to rest and leisure.
6. Right to equal pay equal work.
7. Right to take part in government.
8. Prohibition of slavery and trade.
9. Right to freedom of thought and expression.
10. Right to equal access in public service.



Q. What are the steps taken to eliminate discrimination against women?

1. Provision of equal rights with men.
2. Equal rights in the field of education.
3. Proper measures taken to educate public.
4. To ensure women shall have right to vote.
5. Fight against all forms of traffic in women.
6. Child marriage practice shall be prohibited.

7. Equal protection in the field of employment.
8. To establish legal protection for equal right by removing discriminatory laws, tax, practices.
9. To take all proper measures to eliminate discrimination against women by any person, organization/enterprise.

Q. What are the steps taken to eliminate discrimination against women in Education?

1. Encouraging co-education.
2. Access to literacy programs.
3. Reduction in female dropout rates.
4. Right to health and wellbeing of families.
5. Equal opportunities in sports for women.
6. Reservation of seats under special quota to the women.
7. Giving awareness about higher education and technical.
8. Same opportunities to benefit from scholarships & other study grants.



Q. What are the steps taken to eliminate discrimination against women in Employment?

1. Right to social security.
2. Equal treatment in respect of work.
3. Reservation in all kinds of employment.
4. Right to equal remuneration for equal work.
5. Provide special protection during pregnancy.
6. Right of free choice of employment and profession.
7. Selection criteria should be same for women in the field of employment
8. Right to receive the vocational training like apprenticeship ,advanced training

Q. What are the steps taken to eliminate discrimination against women in Health care?

1. Provision of first aid to women.
2. Women should be enjoyed with maternity leaves.
3. Awareness programs to women about health care.
4. Women should have medical leaves and medical benefits.
5. Employed women should be provided with baby care center.
6. Employed women should be provided with health care center.
7. Separate enclosed accommodation shall be provided for female workers

8. Women should not be dismissed from work if she is on leave for longer days.

Q. What are the steps taken to eliminate discrimination against women in the field of Economic & Social life?

1. Right to vote.
2. Right to leave with pay.
3. Right to choose spouse & enter marriage.
4. The right to leave with pay during sickness.
5. Retirement benefits and provisions for security.
6. The right to leave with pay during old age or other incapacity to work.
7. The right to receive family allowance on equal terms, with men.

WEEK 12

Q. Explain the status of women in India.

- Since independence there has been much improvement in the lot of women in India.
- They enjoy perfect equality with men.
- Our Constitution guarantees them all those rights, freedom, and privileges enjoyed by the male.
- The government has passed many rules and laws in favor of women.
- If a woman feels that someone mentally or physically abuses her, she has the right to raise the voice against all the crimes which is made towards her.
- During the last few decades, India has produced many great women leaders, social workers, administrators, reformers and literary personalities like Vijay Lakshmi Pandit, Indira Gandhi, P.T. Usha, Kalpana Chawla Amrit Kaur etc.
- Their contribution in the fields of art, science and sports, etc. has also been equally significant and memorable.
- It is a fact that Indian women have much better status than many other developing countries.



WOMEN IN RURAL AREAS

Women in rural area have faced lot of problems as they unaware of their right due to illiteracy. Only rural women are considered or meant for house-wife and agricultural labourer without expecting any benefits for their life

Rural poor have no guarantee of livelihood as they consist of agricultural labourers. As agricultural work is seasonal, they could not get employment throughout the year. They sink in poverty and suffer a lot. Among rural poor, half of them are women. The central government enacted the National Rural Employment Guarantee Act-2005 to provide for the enhancement of livelihood security of the households in rural areas of the country by providing atleast one hundred days of guaranteed wage-employment in every financial year to every household whose adult members volunteer to do unskilled manual work and for matters connected there with or incidental there to.

The features and objectives of National Rural Employment Guarantee Act is as below:

- The object of the legislation is to enhance the livelihood security of the women in rural area of the country by providing at least one hundred days of guaranteed wage employment.
- This Act, prepare a scheme to give effect to the guarantee proposed under the legislation.
- The state government should also provide guaranteed wage employment in unskilled manual work at least for a period of one hundred days in a financial year in accordance with the provisions made in the legislation, in rural areas in the state, as notified by the central government to provide every poor household.
- State Government to pay unemployment allowance at the prescribed rate.

The NGO's (Non-Governmental Organizations) work rural women in India, by providing the following necessities:

- Shelter.
- Medical Assistance.
- Counselling
- Removal of Property from Spouse House.
- Shakisalini.
- Legal Aid Centre for Women etc.
- Skill Training.
- Self-Employment Schemes.
- Financial Assistance.
- Legal Aid and Legal Literacy.
- Jagriti Mahila Samiti.
- Indian Social Action Forum.

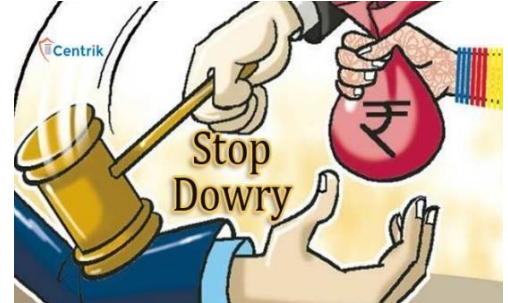
Q. What are the Constitutional Safeguards for women?

- | | |
|----------------------------|---|
| 1. Sati Act. | 10. Equal Remuneration Act |
| 2. Criminal Law Act. | 11. The Employees State Insurance Act. |
| 3. Immoral Traffic Act. | 12. The Medical Termination of Pregnancy Act. |
| 4. Hindu Marriage Act. | 13. Indecent Representation of Women Act. |
| 5. Dowry Prohibition Act. | 14. Protection of Women from Domestic Violence Act. |
| 6. Special Marriage Act. | |
| 7. Maternity Benefit Act. | |
| 8. The Child Marriage Act. | |
| 9. The Family Court Act. | |

Explain Dowry Prohibition Act, 1961:

‘Dowry’ means any property or valuable security given or agreed to be given either directly or indirectly by one party to the other party to a marriage.

- Traditionally, the dowry was considered to be an integral part of marriage of the daughter by the father.
- Today dowry has become a widespread evil and social danger and biggest problem faced by women.
- The Dowry Prohibition Act came into force on 1st July 1961.
- Any agreement for the giving or taking of dowry shall be punishable.
- Penalty for giving or taking dowry, imprisonment for not less than 5 years and fine not less than 15,000 rupees.
- Penalty for demanding dowry, imprisonment for 6 months but which may extend to 2 years and with fine of 10,000 rupees.

**Explain Domestic violence act 2005**

“Domestic Violence includes causing any harm or injury to the life, health or safety of the woman by committing any physical, sexual, verbal or economic abuse”.

- Act enacted to protect women from domestic violence.
- The Act covers all women who may be mother, sister, wife, widow or partners living in a shared household.
- The relationship may be in nature of marriage or adoption.
- In addition relationships with family members living together as a joint family are also included.
- Provides protection from the law to prevent the abuser from committing an act of domestic violence.
- The act provides appointment of Protection officers and NGOs to provide assistance to the women with respect to medical examination, legal aid, safe shelter etc.



Explain Sexual harassment at work place bill 2006.

Sexual harassment at workplace is an act of behavior that consists of physical, emotional or financial safety and security of a woman worker.

Sexual Harassment includes following things:

1. Whistling at someone.
2. Leaning over & pinching.
3. Kissing sounds and blowing lips.
4. Attempted rape or sexual assault.
5. Sexual teasing, jokes, remarks or questions.
6. Touching an employee's clothing, hair or body.
7. Rubbing oneself sexually around another person.



→ It is the responsibility of the employer to ensure that his/her employees are protected at work.

→ The Act will ensure that women are protected against sexual harassment at all the work places, be it in public or private.

→ A person found guilty of sexual harassment at workplace may be sent to prison for 3 years.

HUMAN RIGHTS OF CHILDREN

WHO IS A CHILD

A “Minor” otherwise “a person younger than the age of majority” or child defines as a “human being below the age of 18 years unless under the law applicable to the child, majority is attained earlier”

What are the Rights of the Child?

1. Right to education.
2. Right to basic needs.
3. Right to be born well.
4. Right to freedom and peace.
5. Right to be protected from danger.
6. Right to play and enjoy their youth.
7. Right to access what they need to have a good life.
8. Right to be cared for in the absence of their parent or guardian.



Right to education

The Constitution (Eighty-sixth Amendment) Act, 2002 inserted Article 21-A in the Constitution of India to provide free and compulsory education of all children in the age group of six to fourteen years as a Fundamental Right in such a manner as the State may, by law, determine.



Article 21-A the RTE Act came into effect on 1 April 2010. The title of the RTE Act incorporates the words. 'Free and compulsory'. 'Free education' means that no child, other than a child who has been admitted by his or her parents to a school which is not supported by the appropriate Government, shall be liable to pay any kind of fee or charges or expenses which may prevent him or her from pursuing and completing elementary education.

The RTE Act provides for the

- Right of children to free and compulsory education till completion of elementary education in a neighborhood school.
- It clarifies that 'compulsory education' means obligation of the appropriate government provide free elementary education and ensure compulsory admission, attendance and completion of elementary education to every child in the six to fourteen age group. 'Free' means that no child shall be liable to pay any kind of fee or charges or expenses which may prevent him or her from pursuing and completing elementary education.
- It makes provisions for a non-admitted child to be admitted an age appropriate class.
- It specifies the duties and responsibilities of appropriate Governments, local authority and parents in providing free and compulsory education, and sharing of financial and other responsibilities between the Central and State Governments.
- It lays down the norms and standards relating inter alia to Pupil Teacher Ratios (PTRs), buildings and infra-structure, school-working days, teacher working hours.
- It provides for rational deployment of teachers by ensuring that the specified pupil teacher ratio is maintained for each school, rather than just as an average for the State or District or Block, thus ensuring that there is no urban-rural imbalance in teacher postings.
- It also provides for prohibition of deployment of teachers for non-educational work, other than decennial census, elections to local authority, state legislatures and parliament,
- It provides for appointment of appropriately trained teachers, i.e. teachers with the requisite entry and academic qualifications
- It prohibits

- (a) Physical punishment and mental harassment;
 - (b) Screening procedures for admission of children;
 - (c) Capitation fee;
 - (d) Private tuition by teachers and
 - (e) Running of schools without recognition.
- It provides for development of curriculum in consonance with the values enshrined in the Constitution, and which would ensure the all-round development of the child, building on the child's knowledge, potentiality and talent and making the child free of fear, trauma and anxiety through a system of child friendly and child centre learning.

Explain Protection of children from sexual offences Act POCSO act 2012?

- Child sexual abuse laws in India have been enacted as part of the child protection policies of India.
- The POCSO Act was enacted in 2012 and is gender neutral.
- It defines a child as someone under the age of 18.
- It recognizes that boys can be victims of sexual violence as well.
- This law recognizes sexual harassment of a child which involves touch, making a child expose themselves or exposing themselves to a child and so on.
- It lays down strict punishment for exposing children.
- It Safeguards the interest of the child at every stage of the judicial process.



WEEK 13

National human rights commission (NHRC)

The National Human Rights Commission is a non-constitutional bodies established in 1993. NHRC comprises of a chairman and 4 members. The chairman should be a retired chief justice of India. Headquarter of the commission is located at Delhi.

It protects rights relating to life, liberty, equality and dignity of the individual guaranteed by the Constitution of India.

Powers and functions of NHRC.

1. It enquires violation of human rights.
2. It visits jails under the intimation of state govt.
3. It reviews the factors including acts of terrorism.
4. It spread human rights literacy among the people.
5. It encourages NGOs working in the field of human rights.
6. It submits annual report to the central govt and state govt.
7. To undertake and promote research in the field of human rights.
8. To study treaties and other international instruments on human rights.



Employee rights: Employee rights are the moral and legal rights that are obtained by the status of being an employee.

- Professional rights.
- Basic human rights.
- Institutional rights (Contractual)
- Non contractual rights.
- Right to due process from employers.
- Right to equal opportunity:



Contractual-Non contractual employee rights

- Contractual workers have the right to a safe working environment.
- Contractual employees are employed for specific durations of time to complete specific jobs.
- Once the job is completed the contractual employee is no longer part of the company.
- Contractual employees have the right for the company they work with to uphold all elements in the contract.
- Rights regarding organizational policies, contract, specific salary, annual increments, profits sharing
- For example, if a bonus is promised if the job is done by a certain date, the bonus must be ready if the deadline is met.



Non contractual employee

- Noncontract employees are employed at will and may be dismissed without notice, a description of the reasons for dismissal, or a hearing.
- Non-contract employees have no right of continued employment and may be terminated at any time for any reason not prohibited by law.

Q. What is Whistle blowing? Explain Aspects & Types of Whistle blowing

Whistle blowing can be defined as conveying the information by an employee about a problem to higher authority to take action on the problem.

4 Aspects of Whistle blowing.

1. Basis of disclosure: The basis of disclosure may be intentional or under pressure from superiors or others not to disclose.
2. Relevance of topic: The whistle blower believes that the information is about a significant problem for the organization.
It can be a threat to the public or employee's health, safety and welfare or a criminal activity, having a close link to the organization.
3. Agent: The person disclosing the information may be a current or employee or a person



having a close link to the organization.

4. Recipient: Usually the person who is in a position or organization to remedy the problem.

Types of Whistle Blowing

1. Based on destination (recipient).
2. Based on source or origin (agent).

1. ***Based on destination*** (recipient).

- a. Internal whistle blowing: In this case, the information is conveyed to a person within the organization, but beyond the approved channels.
- b. External whistle blowing. This happens when information is transmitted outside the organization the informer may be retired employee, MP or MLA. It becomes severe if the information reaches the press and to public.

2. ***Based on source or origin*** (agent).

- a. Open whistle blowing: The originator tells his identity as he conveys the information. This information is dependable and true, but sometimes partially true.
- b. Anonymous whistle blowing: The identity is concealed. The information may or may not be true, but the agent anticipates may be some threat, if he reveals his identity.

Partly anonymous whistle blowing: Such a situation exists when the individual tells his identity to the journalist, but insists that the name to be withheld from others

Q. What are the Instruction to be followed before whistle blowing?

1. Use polite and tactful language.
2. Consult the trusted colleagues.
3. Keep the supervisors informed of your actions.
4. If necessary consult a lawyer regarding litigations.
5. Keep your observations and claims precise and accurate.
6. Consult the ethics committee before going outside the organization.
7. One should familiarize with the rules for appealing within the organization.
8. Offering to resign is one of the peaceful and effective methods of blowing your views.

Q. Describe ‘intellectual property rights’

Intellectual property rights are the rights given to persons for the creations of their minds.

Need for Protection of IP**Purposes of IPR:**

1. Prevents copying of ideas.
2. It prevents others to use it.
3. Prevents using it for financial gain.
4. Fulfil obligation (binding) to funding agency (Loan).
5. Provides a strategy to generate steady income.

**Types of IPR (Intellectual property rights):**

1. Patents.
2. Copyrights.
3. Trade mark.
4. Trade secret.

1. Patent: Patent is a contract between the inventor and the society.

- It protects from being manufactured or sold.
- It is a restricted right & needs registration.
- It should be entirely new, innovative & suitable for industrial application.
- Essential to submit documents in detail regarding innovation, applications & resources.
- Legally protected monopoly power as one's own property. (Validity 20 years).

**Types of patents****1. Utility patent:** It is granted to anyone who invents or discovers any new and useful process, machine, manufacture or chemical composition of any manner.

The utility period is 20 years.

2. Industrial design patent: It is an idea regarding features of shape, configuration, pattern, ornamental with lines or colors applied to any article, two or three dimensional, may be any industrial process and is judged by the eye or a product. It has a period of 14 years.

2. **Copyright**: Copyright is a legal term describing rights given to creators for their original written & artistic works.

Copyright includes:

1. Sculptures.
2. Sound recordings.
3. Computer software.
4. Architectural works.
5. TVs and radio broadcasts
6. Drawings, maps, charts or plans.
7. Photographs and films.



- There is no need for registration and no need to seek lawyer's help for settlement.
- The life of the copyright protection is the life of the inventor or author plus 50 years.

3. **Trademark**: Trademark is a distinctive feature like logo, tag line which identifies product or services. This is used to distinguish from one goods from another.

- It is usually a label, logos, symbols, word, image, sounds etc.
- It is a territorial right, which needs registration.



Ex: Numerals –monkey 555, Symbol or logos – LIC, NIK

Functions:

- a. It acts as a silent promoter of sales.
- b. The goods are identified by the trademark.
- c. Serves as a medium for advertising the goods.
- d. Trademark carries an indication of quality of goods and customers satisfaction.

4. Trade secret:

Trade secret is the information which is kept confidential as a secret.

- It is not registered but only kept secret.
- It gives commercial advantage over competitors.
- It has limited legal protection against its misuse.
- It may be formulae, method, technical process, list of suppliers, list of customers.

**Q. Differentiate between Patent & Trade secret:**

Sl.no	Patent	Trade secret
1	Requires Registration Process.	No Registration Process.
2	No Secret is maintained.	Secret is maintained for protecting from Copying.
3	Period lasts for 20years	Lasts long till the product is secured.
4	High legal protection	No legal protection.
5	Ex: light bulb, telephone, pen with scanner, life-saving inventions.	Ex: KFC's secret blend, Coca-Cola's recipe, Customer lists, business plans.